



U.S. Department
of Transportation

Research and
Special Programs
Administration

AUG 2 1994

400 Seventh Street S.W.
Washington D.C. 20590

DOT-E 8465
(FIFTH REVISION)

1. Union Camp Corporation, Wayne, NJ, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation in commerce of certain Division 5.1 materials described in paragraph 3 below subject to the limitations and special requirements specified herein. This exemption authorizes the manufacture, marking and sale of bags of low density polyethylene film for shipment of certain Division 5.1 materials described in paragraph 3 below, and provides no relief from any regulation other than as specifically stated. NOTE: Reference to 49 CFR Sections in this exemption are to regulations in effect on September 30, 1991.

2. BASIS. This exemption is based on Union Camp Corporation's application dated April 11, 1994, submitted in accordance with 49 CFR 107.105.

3. HAZARDOUS MATERIALS (Descriptor and class). Ammonium nitrate fertilizer (containing no more than 0.2 percent carbon) or Sodium nitrite mixture, Potassium nitrate, sodium nitrate and Potassium and Sodium nitrate mixture, classed as Division 5.1 materials .

4. PROPER SHIPPING NAME (49 CFR 172.101). Ammonium nitrate fertilizer; Sodium nitrite mixture; Potassium nitrate; sodium nitrate; Nitrates, n.o.s., as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.182(b)(6)(i); 173.234; 178.241.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification plastic bag (comparable to a DOT-44P), of low density polyethylene film, produced by Low Pressure Process, having (1) a minimum thickness of 0.004" and a maximum net weight of 50 pounds; (2) two plies with a total minimum thickness of 0.008" and a maximum net weight of 101 pounds; or (3) a 6 mil (Duplex) triextruded plastic valve bag, 14" X 5" X 28 3/8" with a 5 1/2" valve and a maximum net weight of 100 pounds. Bags, closed as for shipment, must be capable of satisfactorily withstanding the performance tests prescribed in 49 CFR 178.241-4.

8. SPECIAL PROVISIONS.

a. NO NEW CONSTRUCTION OF THE PACKAGING MANUFACTURED UNDER THE TERMS OF THIS EXEMPTION IS AUTHORIZED AFTER SEPTEMBER 30, 1994. AS THE HOLDER OF THIS EXEMPTION, YOU MAY REQUEST A RENEWAL TO CONTINUE THE USE OF THE PACKAGING MANUFACTURED PRIOR TO SEPTEMBER 30, 1994. HOWEVER, THE EXEMPTION WILL NOT CARRY AN EXPIRATION DATE SUBSEQUENT TO SEPTEMBER 30, 1996 SINCE USE OF THE PACKAGING IS PROHIBITED AFTER THAT DATE. THIS IS CONSISTENT WITH THE TRANSITIONAL PROVISIONS OF 49 CFR SECTION 171.14 AND THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181.

b. Sodium nitrite mixture, Potassium nitrate, Sodium nitrate, and Nitrates, n.o.s. are authorized only for shipment in the 6 mil bag described in paragraph 7(3).

c. Offerors for transportation of hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modification or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such reoffering occurs.

d. A copy of this exemption must be carried aboard each cargo vessel used to transport packages covered by this exemption.

e. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated for a specific manufacturing facility.

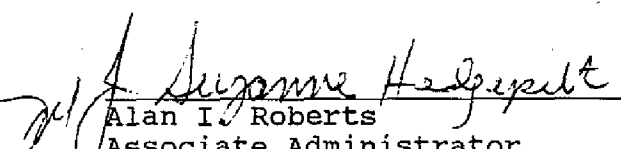
f. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

g. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

10. EXPIRATION DATE. JUNE 15, 1996.

Issued at Washington, D.C.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

AUG 2 1994

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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